Donation Terms and Conditions

Waves For Water Philippines

1. Introduction and Acceptance

These Donation Terms and Conditions (the "Terms") govern all monetary donations made to **Waves for Water Organization, Inc.** doing business as **Waves For Water Philippines**, ("Waves For Water, "W4W," "W4W PH," the "Organization," "we," "us," or "our") a non-stock, non-profit organization duly registered with the Securities and Exchange Commission (SEC) of the Philippines under SEC Registration No.CN201517074, and with principal office at 3/F One Salcedo Center, 170 Salcedo Street, Legaspi Village, Makati City, Philippines.

By making a donation through our website, our authorized payment channels, or any third-party payment platform engaged by the Organization (including Xendit), the donor acknowledges that they have read, understood, and agreed to be bound by these Terms, together with our Privacy Policy and Refund Policy, which are incorporated herein by reference and form an integral part of these Terms

2. About the Organization

Waves For Water is a global humanitarian organization dedicated to ensuring that every person has access to clean and safe water as a foundation for improved health, well-being, education, and community development. Its mission is to work on the front lines of water insecurity by providing sustainable WASH (Water, Sanitation, and Hygiene) solutions through the distribution of portable water filtration systems, rehabilitation of wells, construction of rainwater harvesting and storage systems, hygiene promotion, and the provision of sanitation infrastructure.

In the Philippines, W4W began its work in response to Super Typhoon Haiyan (Yolanda) in 2013, which affected more than 4.3 million Filipinos, and subsequently established its country office in 2015 as a registered non-stock, non-profit organization. Since then, W4W PH has impacted more than 2 million Filipinos across 82 provinces through sustainable, community-based water access, sanitation, hygiene, and disaster response programs.
W4W PH is recognized as:

- an **accredited civil society organization** of the Department of Health (DOH);

- A Philippine Council for NGO Certification (PCNC)-a**ccredited non profit organization**
- a Bureau of Internal Revenue (BIR) **- certified donee institution**, enabling donors to claim tax-deductible donations;
- A Department of Social Welfare and Development (DSWD) **- authorized organization** under **Permit No. DSWD-DB-PSP-S-2026-000120**; and
- A d**istributor of water filtration technology** certified by the DOH-Food and Drug Administration (FDA)

3. Donor Eligibility and Representations

- Donors must be at least eighteen (18) years of age or of legal age in their jurisdiction, and must have full legal capacity to enter into binding agreements. Donations on behalf of minors must be completed by a parent or legal guardian who assumes full responsibility for the transaction.
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- The Donor represents and warrants that:
    - **Accurate Information**. All information provided in connection with the donation, including personal details, contact information, and payment credentials, is true, complete, and accurate, and the donor will promptly update the Organization of any changes.
    - **Authority to Donate**. The donor is legally capable of making the donation and, where applicable, is duly authorized to use the payment instrument or account from which the donation is made.
    - **Lawful Source of Funds**. The donation originates from lawful sources and does not constitute proceeds of any unlawful activity, including money laundering, terrorism financing, fraud, or any activity prohibited under Philippine law.
    - **Compliance With Payment Terms**. The donor will comply with the terms, conditions, and policies of the relevant payment provider, bank, e-wallet service, or remittance channel used to process the donation.
    - **No Expectation of Benefit**. The donation is voluntary and gratuitous, made without expectation of goods, services, preferential treatment, or any material benefit in return.

- **No Conflict of Interest**. The donation does not create a conflict of interest and is not intended to improperly influence the Organization's decisions, programs, or activities.
- **Corporate Donor Authority**. If the donor is a corporation, partnership, foundation, institution, organization, association or other entity, the individual making the donation represents that they are duly authorized to act on behalf of the entity and to bind it to these Terms.

The donor acknowledges that the Organization may rely on these representations and may request additional information or documentation to verify compliance with legal, regulatory, or internal policy requirements.

4. Donation Channels and Payment Processing

Online donations are processed through **Xendit**, a payment service provider operating in the Philippines and regulated by the Bangko Sentral ng Pilipinas (BSP), and/or other authorized payment partners duly engaged by the Organization. By donating, the donor also agrees to be bound by the applicable terms and privacy policies of the payment provider used.

The Organization does not collect or store complete card numbers, CVVs, or e-wallet credentials. Payment credentials are handled exclusively by the payment provider in accordance with applicable security standards (including PCI-DSS, where applicable).

A donation is deemed completed only upon successful confirmation by the payment provider. The Organization is not liable and responsible for donations that fail, are delayed, or are declined due to issues attributable to the donor's bank, card issuer, e-wallet provider, or network.

Transaction, gateway, or remittance fees may be charged or deducted by payment providers or banks. Unless otherwise stated, the amount received by the Organization constitutes the net amount after deduction of such fees.

5. Nature of Donations

- Voluntary. All donations are voluntary, gratuitous contributions made without expectation of goods, services, or any material benefit in return, consistent with the nature of a donation under Articles 725 *et seq*. of the Civil Code of the Philippines.

The donor acknowledges that the Organization retains full discretion and control over the use of donated funds, subject to its governing documents and applicable law.

- Donation Program Reporting. The Organization is committed to transparency and responsible stewardship of donations. The Organization may provide program updates, impact summaries, or financial reporting to donors and the public, consistent with its mission, operational capacity, and regulatory obligations. Such reporting may include aggregated data, anonymized beneficiary information, narrative updates, photographs, or other non-identifying materials that illustrate program outcomes.

  Program reporting is provided on a best-effort basis and does not constitute a contractual obligation to deliver individualized or donor-specific reports. The donor acknowledges that the scope, format, and frequency of reporting may vary depending on program needs, field conditions, security considerations, and resource availability.

  The Organization retains discretion to determine the appropriate level of detail and timing of program reporting and may adjust reporting practices to comply with applicable laws, including the Data Privacy Act of 2012, humanitarian protection standards, and ethical guidelines governing beneficiary privacy and dignity.

- Prohibited Donations. The Organization will not accept donations that it reasonably believes, or has cause to suspect, fall within any of the following prohibited categories:
  - **Unlawful Sources** - Donations that originate from unlawful activities, including money laundering, terrorism financing, fraud, corruption, trafficking, or any conduct prohibited under Philippine or applicable international law.
  - **Sanctioned or High-Risk Entities** - Donations from individuals or entities listed on sanctions, watchlists, or other compliance databases issued by the Philippine government, the United Nations, or other recognized authorities.
  - **Political Parties or Candidates** - Donations intended to support, benefit, or be associated with political parties, candidates, or partisan political activities, in accordance with ethical fundraising standards and applicable regulations.

- **Conflict-of-Interest Donations** - Donations that may improperly influence, or appear to influence, the Organization's decisions, programs, procurement, or beneficiary selection.
- **Conditional Donations** - Donations that impose conditions inconsistent with the Organization's mission, humanitarian principles, or operational independence.

The Organization reserves the right to decline, refuse, hold, or return any donation, in whole or in part, if it reasonably believes that accepting the donation would expose the Organization to legal, regulatory, financial, operational, or reputational risk. The Organization may conduct risk-based due diligence and request additional information from donors to verify compliance with this clause.

6. Use of Donations

- **Undesignated donations.** Donations made without a specified purpose will be applied to the Organization's general fund and used where the need is greatest, including program implementation, community-based WASH interventions, emergency response, organizational capacity building, and reasonable operating and administrative costs necessary to sustain the Organization's mission.
- **Designated donations.** Where a donor designates a specific program, campaign, geographic area,or disaster response, the Organization will apply the donation to that purpose to the extent reasonably practicable. If the designated purpose becomes fully funded, impracticable, impossible to implement, or is discontinued due to operational, regulatory or safety considerations, the donor agrees that the Organization may redirect the donation to a substantially similar purpose or to its general fund, consistent with the Organization's mandate and applicable law.
- **Force Majeure.** Neither the Organization nor the donor shall be liable for any delay, failure, or inability to perform any obligation under these Terms (other than payment obligations) when such delay or failure is caused by a Force Majeure Event, meaning any event beyond the reasonable control of the affected party. Force Majeure Events include, but are not limited to: natural disasters such as typhoons, floods, earthquakes, volcanic eruptions, landslides, or severe weather; fire, epidemic, pandemic, public health emergency, or quarantine restrictions; war, armed conflict, civil unrest,

terrorism, or acts of sabotage; government action, regulation, or order; widespread power outages, telecommunications failures, or disruption of payment networks; or acts or omissions of third-party service providers beyond the Organization's reasonable control. The affected party shall use reasonable efforts to mitigate the impact of the Force Majeure Event and resume performance as soon as practicable. If a Force Majeure Event materially affects the Organization's ability to implement a designated program or campaign, the donor agrees that the Organization may reallocate or redirect the donation to a substantially similar purpose or to its general fund, consistent with its mission and applicable law.

- The donor acknowledges that the Organization retains full discretion and control over the use, management, and administration of donated funds, in accordance with its Articles of Incorporation, By-Laws, internal financial policies, and applicable laws and regulations. The Organization maintains books of accounts subject to internal controls, external audit, and regulatory review, but donors do not acquire any audit, inspection, or oversight rights over the Organizational financial records.
- No earmarking for Individuals.Donations may not be earmarked for the benefit of any specific individual, household, or privately designated recipient. The donor acknowledges that the Organization implements programs based on objective, needs‑based criteria and humanitarian principles, and that assistance is provided to communities or beneficiaries identified through the Organization's established assessment and selection processes.The Organization will not accept or implement donations intended to favor, reward, or provide material benefit to a particular person or privately selected beneficiary, nor will it act as a conduit for personal transfers, gifts, or financial support directed to individuals. Any donation submitted with such intent may be declined, returned, or redirected to the Organization's general fund or to a substantially similar program, at the Organization's discretion. This restriction ensures compliance with applicable laws, including the Anti‑Money Laundering Act, the Terrorism Financing Prevention and Suppression Act, and ethical fundraising standards, and protects the integrity, independence, and impartiality of the Organization's programs.

7. Recurring Donations

- Donors may authorize recurring (e.g., monthly) donations, which will be automatically charged to the donor's chosen payment method on the applicable billing cycle until cancelled. By enabling a recurring donation, the donor authorizes the Organization and its payment service providers to process periodic charges in accordance with the donor's selected frequency and payment details.
- Donors may cancel or modify a recurring donation at any time by contacting the Organization at philippines@wavesforwater.org or through the cancellation facility provided by the relevant payment platform. Cancellations take effect prospectively, and charges already processed prior to cancellation are governed by our Refund Policy.
- The donor acknowledges that the Organization is not responsible for failed, delayed, or duplicate recurring charges arising from issues attributable to the donor's bank, card-issuer, or e-wallet provider, or payment platform, and that the donor remains responsible for ensuring the accuracy and validity of their payment information.

8. Cross-Border Donations

Cross-border donations, whether made through international payment channels, foreign banks, overseas remittance providers, or donors located outside the Philippines are subject to applicable Philippine laws and regulations governing foreign contributions, including the Anti-Money Laundering Act, the Terrorism Financing Prevention and Suppression Act, relevant AMLC and BSP issuances, and any foreign exchange, reporting, or compliance requirements that may apply.

The donor acknowledges that international transactions may involve additional processing steps, verification procedures, currency conversion, intermediary bank fees, or delays attributable to foreign financial institutions or cross-border payment networks. The Organization does not control these third-party processes and shall not be liable for any loss, delay, or charge arising from them.

The Organization may conduct risk-based due diligence on cross-border donations, which may include verifying donor identity, requesting information on the source of funds, and screening against international sanctions or watchlists. The donor agrees to provide such information upon request to enable the Organization to comply with its legal and regulatory obligations.

The Organization reserves the right to decline, hold, refuse, or return any cross-border donation, in whole or in part, if it reasonably believes that accepting the donation would expose the Organization to legal, regulatory, financial, or reputational risk, or if the donation appears inconsistent with applicable laws or humanitarian standards.

Where required by law, the Organization may report cross-border or suspicious transactions to the AMLC or other competent authorities and may cooperate with foreign or domestic regulators in connection with any investigation.

9. Acknowledgment, Receipts, and Tax Matters

- The Organization will issue an acknowledgment or official receipt for donations received, in accordance with the requirements of the BIR and applicable regulations governing non-stock, non-profit corporations and accredited donee institutions. Donors are responsible for ensuring that the name, address, contact details, and Taxpayer Identification Number (TIN, if applicable) they provide are complete and accurate, as these details will appear on the receipt and any corresponding tax documentation.
- Tax treatment of donations, including deductibility for income tax purposes under Section 34(H) of the National Internal Revenue Code, as amended, and exemption from donor's tax under Section 101 thereof, depends on the Organization's registration and accreditation status (including any accreditation as a BIR-certified donee institution) and on the donor's own tax circumstances. Where applicable, and upon receipt of the required donor information, the Organization will issue a Certificate of Donation (BIR Form 2322) to support the donor’s tax filings.
- The donor acknowledges that the Organization does not provide tax, legal, or accounting advice. Nothing in these Terms, nor any receipt or certificate issued by the Organization, shall be constituted as such advice. Donors are encouraged to consult their own tax advisors regarding the deductibility, reporting, and documentation requirements applicable to their donations.

10. Refunds

Donations are generally final and non-refundable, consistent with the voluntary and gratuitous nature of donations under applicable law.. Limited exceptions, such as duplicate transactions, erroneous amounts, technical processing errors, or unauthorized transactions, are governed by the Organization's Refund Policy, which forms an integral part of these Terms.

Refund requests may require verification of the donor’s identity, proof of transaction, and coordination with the relevant payment provider. The donor acknowledges that the

Organization may rely on information provided by payment processors, banks, or e-wallet providers in determining eligibility for a refund, and that the Organization is not responsible for delays attributable to such third parties.

Refunds, where approved, will be processed using the original payment method, or such other method as may be reasonably determined by the Organization, subject to the policies of the payment provider and applicable banking or remittance rules. Any transaction, gateway, or remittance fees already charged by payment providers or banks may not be refundable.

11. Compliance, Anti-Money Laundering, and Right to Decline Donations

- The Organization is committed to lawful, transparent, and ethical fundraising and complies with all applicable Philippine laws and regulations, including the Anti-Money Laundering Act of 2001 (Republic Act No. 9160), as amended, the Terrorism Financing Prevention and Suppression Act of 2012 (Republic Act No. 10168), and relevant issuances of the Anti-Money Laundering Council (AMLC) and the BSP governing electronic payments and suspicious transaction reporting, and customer due diligence
- The Organization may conduct risk-based due diligence on donations and donors, which may include verifying donor identity, requesting information on the source of funds, and screening against publicly available watchlists, sanction lists, or other compliance databases. The donor agrees to provide such information upon request to enable the Organization to comply with its legal and regulatory obligations.
- The Organization reserves the right, in its sole discretion, to decline, refuse, hold, or return any donation, in whole or in part, where it reasonably believes the donation:
    - originates from unlawful, suspicious or unverifiable sources;
    - may constitute money laundering, terrorism financing, or other prohibited activity under applicable law;
    - is inconsistent with the Organization's mission or values, or humanitarian principles;
    - may create a conflict of interest, or violate ethical fundraising standards; or
    - may expose the Organization to legal, regulatory, financial or reputational risk.

- To comply with legal and regulatory obligations, the Organization may request additional information or documentation from a donor, including proof of identity, source of funds, or other relevant details. The donor agrees to provide such information upon request. The Organization may, where required by law, report suspicious transactions to the appropriate authorities, including AMLC, and may cooperate with law enforcement or regulatory agencies in connection with any investigation. The donor acknowledges that such reporting may occur **without prior notice** to the donor, to the extent permitted or required by law.

12. Donor Data Privacy

Personal information provided in connection with a donation is collected, used, stored, and processed in accordance with the Data Privacy Act of 2012 (Republic Act No. 10173), its Implementing Rules and Regulations, and the Organization's Privacy Policy.Donor information is processed only for legitimate organizational purposes, including donation processing, receipting, compliance with legal and regulatory requirements, and donor communications consistent with the Organization’s mission

Donor information may be shared with authorized third-party service providers, such as payment processors including Xendit solely to the extent necessary to process the donation or comply with applicable laws. These service providers are required to implement appropriate organizational, physical, and technical security measures to protect donor data.

The Organization does not sell, trade, or commercially disclose donor information. Donors may exercise their rights under the Data Privacy Act, including the rights to access, correct, withdraw consent, or object to processing, by contacting the Organization through channels indicated in its Privacy Policy.

13. Public Recognition and Anonymity

The Organization will not publicly disclose a donor’s name, identifying information or the amount of any donation without the donor's prior consent, consistent with the requirements of the Data Privacy Act of 2012 (RA 10173) and the Organization’s Privacy Policy. Donors who wish to remain anonymous may indicate this at the time of donation or by contacting the Organization through its official communication channels.

Unless the donor expressly requests anonymity, the Organization may acknowledge donors in a manner consistent with ethical fundraising practices, provided that such acknowledgement

does not disclose personal information beyond what the donor has consented to share. The Organization may use non-identifying, aggregated, or anonymized donor information for reporting, transparency and fundraising purposes.

14. Limitation of Liability

To the fullest extent permitted by applicable law, the Organization shall not be liable for any indirect, incidental, special, exemplary, or consequential damages, including but not limited to loss of data, loss of opportunity, loss arising from payment processing errors, or any damages resulting from the use of third-party payment platforms, network or system downtime, technical failures, or events beyond Organization's reasonable control.

The Organization shall not be liable for any acts or omissions of third-party service providers, including payment processors, banks, e-wallet providers, remittance partners, or telecommunications networks, and the donor acknowledges that such third parties operate independently of the Organization.

Nothing in these Terms shall exclude or limit liability that cannot be excluded under Philippine law, including liability arising from Organization's fraud, or gross negligence For all other claims, the donor agrees that the Organization's aggregate liability, if any, shall not exceed the net amount of the donation actually received by the Organization.

15. Amendments

The Organization may revise or update these Terms from time to time to reflect changes in applicable laws, regulatory requirements, operational needs or organizational policies. Any updated version will be posted on our website or donation channels with a revised effective date, and will apply to donations made after the date of posting. Continued use of the Organization's donation channels after such posting constitutes the donor's acceptance of the updated Terms.

16. Governing Law and Dispute Resolution

These Terms are governed by and construed in accordance with the laws of the Republic of the Philippines, without regard to any conflict-of-laws principles. Any dispute, claim, or controversy arising from or relating to these Terms or the donation made shall first be subject to good faith efforts at amicable settlement between the donor and the Organization.

If amicable settlement is not achieved within a reasonable period, the dispute shall, be brought exclusively before the proper courts of Makati, Philippines, to the exclusion of all other venues, and the donor expressly submits to the jurisdiction of such courts.